

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 4, 2025

TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 15	21CV382079	Debt Management Partners, Llc vs Erica Gutierrez	Hearing: Claim of Exemption The claim of exemption is DENIED. The Court finds that Gutierrez’s financial statement shows sufficient non-exempt funds to satisfy the withholding. Gutierrez has not established that anything more than her proposed amount to be withheld is unreasonable (CCP § 706.123). In addition, the Court agrees with the judgment creditor that Gutierrez’s monthly income appears understated, expenses for clothing and laundry/cleaning appear excessive, and that the present judgment takes priority over those other generalized debts such as “monthly bill c cards”.
LINE 16	21CV390568	Jeff Taylor vs Ford Motor Company	Motion to Amend Complaint Ctrl Click (or scroll down) on Line 16 for tentative ruling.
LINE 17	24CV452949	STEELFAB, INC vs JIM MYERS & SONS, INC. et al	Hearing: Pro Hac Vice Counsel The unopposed Application of Cory J. Taylor to Appear Pro Hac Vice is GRANTED. Counsel to submit a proposed order within 10 days of the date of the hearing.

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Calendar Line 4

Case Name: *SMTC Corporation et al. v. ChargePoint, Inc.*

Case No.: 25CV457660

I. BACKGROUND

Plaintiffs SMTC Corporation and SMTC Manufacturing Corporation of California (collectively “SMTC” or “Plaintiffs”) bring this breach of contract action against defendant ChargePoint, Inc. (“ChargePoint” or “Defendant”).

SMTC is a mid-size contract manufacturer of electronics. (Complaint, ¶ 1.) ChargePoint develops, sells, and operates a large network of elective vehicle charging stations. (*Ibid.*)

According to the allegations of the complaint, in August 2020, the parties entered into a Master Supply Agreement (“MSA”), effective on July 13, 2020. Under the MSA, SMTC would develop, supply, support, and provide electronics manufacturing services for use in ChargePoint’s applications and products. (Complaint, ¶ 2.) To perform these manufacturing services, SMTC: [REDACTED]

[REDACTED] (*Id.* at ¶ 3.)

Based on the terms of the MSA, where [REDACTED]
[REDACTED]
[REDACTED] (Complaint, ¶ 4.) Similarly, [REDACTED]
[REDACTED] (*Id.* at ¶ 5.) As part of the terms of the MSA, SMTC [REDACTED]
[REDACTED] (*Id.* at ¶ 16.)

[REDACTED]
[REDACTED] (Complaint, ¶¶ 12-13.) [REDACTED]
[REDACTED] (*Id.* at ¶ 13.) Additionally, SMTC supported ChargePoint in its \$14 million grant application to the California Energy Commission (“CEC”) for a manufacturing grant, [REDACTED]
[REDACTED] (*Ibid.*) [REDACTED] (*Ibid.*)

[REDACTED]
[REDACTED] (Complaint, ¶ 16.) In May 2022, [REDACTED]
[REDACTED] (*Id.* at ¶ 17.)